

HEADNOTE

“Unless the court orders otherwise, the intervener is treated as a party pursuant to R. 315.4 RoP. Consequently, R. 262A.6 RoP also applies to it. The intervener therefore has the right to ensure that the group of persons entitled to access information classified as confidential includes at least one natural person in addition to their legal representatives.”

COURT

Local Division in Düsseldorf

PROCEEDINGS

Procedural order

PATENT

EP 3 490 258 B1

METHOD AND RECORDING MEDIUM

STORING CODED IMAGE DATA

KEYWORDS

Protection of secrets

Parties

Interveners

Access restriction

Group of persons entitled to access

Tiered regime for the protection of secrets

Rule 315

Statement in intervention

SUMMARY

The Local Division in Düsseldorf issued a procedural order. The patent at issue relates to a method and recording medium storing coded image data. According to the headnotes of the decision, an intervener is treated as a party under the Rules of Procedure unless the court orders otherwise. Consequently, the intervener benefits from the same procedural rights as other parties. This includes the right to access confidential information. The intervener may ensure that at least one natural person can access such information. This person must be in addition to their legal representatives. This protects the intervener's ability to participate meaningfully in proceedings involving classified materials.